

UNIVERSITY OF PORT HARCOURT
FACULTY OF LAW

1ST SEMESTER TEST ON CRIMINAL LAW I (PUL. 301) HELD ON 10TH MARCH, 2020

INSTRUCTION: Answer any TWO QUESTIONS. All questions carry equal marks.

1. Narrate the history of the Nigeria Criminal and Penal Codes from the pre-colonial times till date. Illustrate your answer by citing appropriate legislations and case laws.
2. Ignorance of the law is no excuse. However, mistake of fact can insulate a defendant from a criminal charge if it serves to negate the required *mens rea* of a crime. In line with this assertion, critically examine the defence of mistake in Criminal Law with the aid of decided cases and statutory authorities.
3. John and Peter were convicted for the murder of a Soldier who was killed in the farm while on leave at his village in Cross River State. He was cut into pieces and his body parts were taken home for consumption by the killers who shared same amongst their friends including the accused persons. John and Peter were convicted at the High Court for Murder and their appeal to the Court of Appeal was also dismissed But on a further appeal to the Supreme Court, the apex Court discharged John and Peter for the offence of Murder and found them guilty for the brazen act of cannibalism. The Supreme Court went ahead to hold that as the custodian of the moral values of the Nigerian people, they possess the residual powers to create the new offence of Cannibalism for which John and Peter have committed and they accordingly sentenced them both to death by hanging for the offence of Cannibalism. Using the principle of legality, write a critique of this judgment and give reasons why the judgment is good or bad.

honest / reasonable

Graham V. R.
3.25

Noss

UNIVERSITY OF PORT HARCOURT
FACULTY OF LAW
LL.B YEAR 3 1ST SEMESTER CONTINUOUS ASSESSMENT TEST- 2019/2020 SESSION
COURSE: BANKING & INSURANCE LAW 1 (PPL 305)
Time Allowed: 1 hour

INSTRUCTION: Answer the two questions.

QUESTION 1:

With the aid of authorities, if any, briefly discuss the contractual relationship between the Banker and the Customer.

QUESTION 2:

Bank's supervisory and examination activities are complementary as they seek to protect depositors and to prevent systematic failure of banks. With the aid of statutory provisions, discuss the circumstances the Governor of CBN can order for the examination of banks.

UNIVERSITY OF PORT-HARCOURT

FACULTY OF LAW: FIRST SEMESTER EXAMINATIONS 2019/2020 SESSION

CLASS: LL.B YEAR 3

SUBJECT: LAW OF TORTS PPL 301

DATE: 12th March 2021

TIME: MORNING PAPER (9 a.m.)

TIME ALLOWED: 3 HOURS

INSTRUCTIONS: ANSWER ANY 3(THREE) QUESTIONS FROM SECTION A.

ANSWER ANY 1(ONE) QUESTION IN SECTION B.

SECTION A

Question 1

- Define the term elements of a tort
- Discuss the first and Second elements of the Tort of Negligence.

Question 2

In January 2015, Chief Benson owned an estate with 5 flats in Quality Street, Port Harcourt. One of these flats was rented by Bola Chicago, his wife Titi and his daughter Veronica on a 3 years tenancy that was to expire in 2018. A second flat was occupied alone by Okon, the caretaker of Chief Benson. The third flat was rented by Mr and Mrs Idemudia and their daughter Ikom on a 2 years tenancy that was to expire in 2017. The fourth flat was unoccupied. The fifth flat was occupied by a squatter by name Charlie without the knowledge of Chief Benson or Okon because the door of this flat led outside into the street. On the 7th of March 2015, Chief Benson arrived the estate on his monthly visit. At the time of his arrival, there was no adult in the compound because Okon had travelled to Uyo, and the Idemudias and Chicagos were attending a wedding. Chief Benson saw Veronica fighting with Ikom over whose turn it was to clean the compound. Chief Benson decided to settle the dispute. Chief Benson blamed Veronica for the fight and flogged Veronica 12 strokes of the cane. Chief Benson left and went to lodge at room 205 at the People's Guest House opposite his estate. He paid for 2 nights. When Titi Chicago returned, Veronica told her what had transpired. She was so furious, she entered Okon's flat and emptied a whole container of refuse in the parlour. She left the refuse container on the dining table. Mr Idemudia witnessed this and called Chief Benson and told him what she did. Chief Benson returned and entered into Titi Chicago's house with his driver and body guard. He ordered the driver to slap Titi. The driver slapped her. Bola Chicago hearing the noise came out of his bedroom. When he saw Chief Benson and his driver and body guard, he ordered them to leave his house immediately. Chief Benson replied: "I will not leave. I will show you am your landlord." Chief Benson ordered his guard and driver to hold Bola Chicago while he sat on Bola Chicago's settee and started sipping a chilled bottle of Star Beer he seized from Bola Chicago's fridge. Because Bola Chicago was asthmatic, he passed out and died as a result of Chief Benson's body guard's firm grip on his neck. Chief Benson, his driver and body guard quickly drove off to the People's Guest house where Chief Benson found that his room 205 occupied by Chief Pott his arch enemy. Chief Pott had stolen the key to the room from the hotel reception. Okon returned the following morning and was shocked to find a huge heap of refuse in his house. He rushed to the nearest Police Station and complained. In the course of investigation, the Police found an identical refuse container in front of Mrs Idemudia's house and arrested her. She was detained for 2 days.

Nyanga wants to sue for negligence, but she cannot prove negligence. Advise her.

SECTION B

Question 5

High Chief Tari, a well known business man and Philanthropist from Choba Community owns a massive home along the East-West Road, Port Harcourt. The home is popularly known as "All in One Villa". The 'All in One Villa' has many parts/sections: a garden, water fall, bricks park and a zoo which are all open to the general public. He appointed Mr. Somina to be in-charge of the garden for a period of 3years that he would be out of the country. During this period, Mr. Somina reserves the right to exercise his discretion in all matters concerning the garden. In the garden, there are both medicinal and non-medicinal plants. Also contained in the garden is a colourful but dangerous/deadly short tree planted at the centre. The tree is known as "the tree of life" and its flowers which can be easily accessed by both young and old people as a result of its height has cure to many diseases. However, the flowers can only be plucked by adults because of its acidic nature. This fact was within the exclusive knowledge of High Chief Tari and Mr. Somina only but unknown to the public. No attempt was also made to let visitors know of this. On the 5th of January, 2021, Mrs Amara along with her husband Engr. Dada and their 6 years old Son, Master Aboy visited the garden in search of some medicinal plants for their sick daughter, Nwobabe. Master Aboy on seeing the colourful flowers, plucked one and died instantly as a result of the acidic nature of the flower. Sadly, Engr. & Mrs. Amara Dada confronted Mr. Somina and accused him of being responsible for the death of their Son, Aboy because no notice was given to that effect. Mr. Somina on the other hand contends that he owes them no explanation because he is not the owner of the garden and that anyone who comes into the garden consents to being responsible for himself or herself. Consequently, they do so at their own peril. He went further to say that parents alone should be responsible for the safety of their children and none else. He boasts that they can take the matter to anywhere in the world because he is very certain that he owes them no duty of care at all, afterall they didn't pay for the plants. As a Law Student, identify the torts here; outline and address the issues raised while cementing them with necessary authorities. Finally, advice Engr. & Mrs. Dada on the success or otherwise of the case.

Question 6

It is trite Law that a tortfeasor is liable for the consequences of his intentional, malicious and wilful tort, and that the damages suffered thereby are not too remote nor unenforceable. Discuss!

UNIVERSITY OF PORT-HARCOURT

FACULTY OF LAW: FIRST SEMESTER EXAMINATIONS 2019/2020 SESSION
CLASS: LL.B YEAR 3
DATE: 12th March 2021
TIME ALLOWED: 3 HOURS

SUBJECT: LAW OF TORTS PPL 301
TIME: MORNING PAPER (9 a.m.)

INSTRUCTIONS: ANSWER ANY 3(THREE) QUESTIONS FROM SECTION A.
ANSWER ANY 1(ONE) QUESTION IN SECTION B.

SECTION A

Question 1

- Define the term elements of a tort
- Discuss the first and Second elements of the Tort of Negligence.

Question 2

In January 2015, Chief Benson owned an estate with 5 flats in Quality Street, Port Harcourt. One of these flats was rented by Bola Chicago, his wife Titi and his daughter Veronica on a 3 years tenancy that was to expire in 2018. A second flat was occupied alone by Okon, the caretaker of Chief Benson. The third flat was rented by Mr and Mrs Idemudia and their daughter Ikom on a 2 years tenancy that was to expire in 2017. The fourth flat was unoccupied. The fifth flat was occupied by a squatter by name Charlie without the knowledge of Chief Benson or Okon because the door of this flat led outside into the street. On the 7th of March 2015, Chief Benson arrived the estate on his monthly visit. At the time of his arrival, there was no adult in the compound because Okon had travelled to Uyo, and the Idemudias and Chicagos were attending a wedding. Chief Benson saw Veronica fighting with Ikom over whose turn it was to clean the compound. Chief Benson decided to settle the dispute. Chief Benson blamed Veronica for the fight and flogged Veronica 12 strokes of the cane. Chief Benson left and went to lodge at room 205 at the People's Guest House opposite his estate. He paid for 2 nights. When Titi Chicago returned, Veronica told her what had transpired. She was so furious, she entered Okon's flat and emptied a whole container of refuse in the parlour. She left the refuse container on the dining table. Mr Idemudia witnessed this and called Chief Benson and told him what she did. Chief Benson returned and entered into Titi Chicago's house with his driver and body guard. He ordered the driver to slap Titi. The driver slapped her. Bola Chicago hearing the noise came out of his bedroom. When he saw Chief Benson and his driver and body guard, he ordered them to leave his house immediately. Chief Benson replied: "I will not leave. I will show you am your landlord." Chief Benson ordered his guard and driver to hold Bola Chicago while he sat on Bola Chicago's settee and started sipping a chilled bottle of Star Beer he seized from Bola Chicago's fridge. Because Bola Chicago was asthmatic, he passed out and died as a result of Chief Benson's body guard's firm grip on his neck. Chief Benson, his driver and body guard quickly drove off to the People's Guest house where Chief Benson found that his room 205 occupied by Chief Pott his arch enemy. Chief Pott had stolen the key to the room from the hotel reception. Okon returned the following morning and was shocked to find a huge heap of refuse in his house. He rushed to the nearest Police Station and complained. In the course of investigation, the Police found an identical refuse container in front of Mrs Idemudia's house and arrested her. She was detained for 2 days.

- a. List the Tortious and non-Tortious issues in the above scenario and identify the category of Tort the tortious issues come under.
- b. With the aid of decided cases, briefly examine the liability of each person in the above scenario

Question 3

- a. Madam Rena Regina owns a huge expanse of land in Choba Port Harcourt. The first part of the land is a vacant plot. The second part contains 100 self-contained houses for student's accommodation. Madam Regina put Okon in one of the self-contained as her caretaker. Bola Chicago's company FMX Ltd was hired by Choba Local Government to carry out refuse collection in Choba. On the 7th of January 2021, while returning with a full truck of refuse, Bola Chicago drove into the edge of the first part of Madam Rena Regina's land to avoid traffic. Because Bola Chicago was driving very fast and the truck was very full, 10 empty sachets of pure water fell on Madam Rena Regina's land. Bola Chicago was unaware and drove away. Joy Nyanga, who owns a 3 bedroom house near Madam Rena Regina land, entered Madam Rena Regina's land to put out a fire that had been lit by Okon that was filling her bedroom with smoke. Adolphus was authorized by Choba Local Government to build a drainage at the entrance of the first part of Madam Rena Regina's land to avoid flood. Madam Rena Regina consented to the building of the drainage but was surprised to find that Adolphus instead built a tunnel into the second part of her land to spy on the occupants of the self-contained. Madam Rena Regina filed a law suit against Bola Chicago, Joy Nyanga and Adolphus. Bola Chicago argued in his reply that he only drove on the land for 3 minutes and that it was only 10 sachets of pure water and that Madam Regina not being in possession could not sue. Advise the parties.
- b. On the 5th of January, 2021 Sizwe Bansi borrowed Ola's SUV car to wed. He promised to return the car by the 7th of January 2021. On the 6th of January he used the car to carry Indian Hemp to Cotonou. The car confiscated by customs at the border. Advise Sizwe Bansi.
- c. Mary-Jane, a caterer, is suing her boss, the chef for negligently locking her in the kitchen store for 3 days. She is claiming loss of 3 days income and emotional trauma. Identify where the special and general damages lie.

Question 4

- a. Kindly proffer legal advice in the following scenario:
 - i. Bisi taps Ebinimi's shoulder to inform her that her law of torts lecturer is calling her. Ebinimi has decided to sue Bisi.
 - ii. Anytime there is crisis in Choba, the Police would arrest Tayo alias the "the bad son."
 - iii. Try Us Medical Centre detained Mrs Chicago for 2 weeks because her husband failed to pay the medical bill negotiated for her treatment.
 - iv. Jerry in LLB 1 brought out a knife and threatened to stab Tom in LLB 3. Tom replied: "you are a small boy am not afraid of you."
 - v. Mummy Abex of spiritual house blew powder on Rex. Rex did not know himself again and stayed in her shop for 12 hours.
- b. Joy Nyanga applied that her statement of result in the Faculty of Law, South – South University be sent to Total Nigeria Ltd which had offered her employment. The Exam officer sent the result of Tumini Olodo with Joy Nyanga's name to Total Oil Company. As a result of the fact that the result had 19 F grades and 37 E grades, Joy Nyanga was denied employment. Joy

Faculty of Law

1st Semester Examination – 2019/2020 Academic Session

Course: Criminal Law I (PUL 301)

Instruction: Answer any THREE questions from Section A and ONE question from Section B.

Duration: 3 hours

Date: Tuesday 9th March, 2021

QUESTIONSSection A

1. Alex, Gbenga, Audu and Eket who were all students of Newtown University agreed to invade the election venue of the University Space studies students and disrupt the holding of the said election. They agreed to arm themselves with machetes, clubs, cudgels and other dangerous weapons in going for the operation. On the day of the operation, the foursome missed the venue of the election and approached a security personnel of the University who directed them to the said venue. At the venue, the Space studies students had fortified security at the entrance which made it difficult for intruders to gain access. As a result of this development, Gbenga saw one of his friends Tola and pleaded with him to give his pistol to be used for the operation. Gbenga proceeded with the pistol given to him by Tola to the gate and attempted to shoot on the security personnel at the gate, but he was shocked to discover that there was no bullet in the said pistol. Alex then rushed one of the security operatives and stabbed him to death. The other security men all scampered for their safety leaving open the gate of the election venue. The foursome disrupted the election, chased out the Space studies students and even robbed some of them of their valuables like Phones, laptop computers and wallets. At the University exit gate, there was heavy security presence and all the cars going out were being thoroughly searched. In order to defeat this search, Alex called his girlfriend Linda and handed over the stolen phones and laptops to her to keep for him in her room. Linda subsequently sent the laptop to Alex at his lodge after about one week. Discuss the criminal liability of all the named persons who played one role or the other in this intriguing episode.
2. A husband and wife, Ekpo and Ima hatched a plan to break into the village church personage and make away with the church savings reserved for the building of the church cathedral. Ekpo was the pastor's warden and was the one who joins the pastor every Sunday in adding more money into the box where the church funds were being stored. The husband and wife agreed to duplicate the keys to the personage in order to gain access without difficulty. While Ekpo got a sample of the key, it was Ima who contacted the only blacksmith in the village who moulded the key for them. Ekpo also spoke with the church security guard, Elijah. Although Elijah agreed, his real intention was to get the whole details of the plan and expose them. On the eve of the operation, Ima had a change of heart and developed cold feet over the entire operation. She openly told her husband

Ekpo that she was no longer part of the deal. Ekpo was however determined to continue and single-handedly broke into the personage the following morning only to discover that the box of money was no longer there. Unknown to Ekpo and Ima, Elijah had revealed their plans to the parish pastor who quickly removed the box of money from that room. Critically discuss the elements of Conspiracy and the liability *vel non* of the various persons mentioned in this incident.

3. (a) Emeka was driving home from his office and felt increasingly drowsy. He fell asleep and his car mounted the pedestrian pavement, crashed into a wall and trapped a young lady against the wall, causing her injury. The crash suddenly woke Emeka who, seeing the trapped young lady, decided not to move the car, thereby causing her serious injury. After a while, he decided to move, reversed and drove away without apology. Mr. John, a passing pedestrian, witnessed the event, was very upset by the occurrence. However, he also walked away without aiding the young lady who died two hours later as a result of excess bleeding. With the aid of decided cases, discuss the criminal liability of Emeka and John.

(b) Discuss the scope and limits of the defence of intoxication under the Criminal Law.

4. (a) John use to have a crush on his classmate Derby. John likes Derby a lot and is very fond of her. On one fateful date, John decided to surprise Derby with a visit to her room. As he opened the door to the room, John found Derby asleep. John admired Derby for a while and then decided to take off his clothes, joined her in the bed and started to caress her. When Derby woke up and saw John fully naked on her bed, she asked him what he was doing and John expressed a clear intention to have sexual intercourse with her and Derby started to shout. Neighbours then came in and apprehended John. John is currently in police custody. Discuss his liability for the offence of attempt to commit rape.

(b) Discuss the various theories of Attempt known to you and delineate the dividing line between Attempt and preparation.

Section B

5. (a) The object of the criminal law is the punishment of a convicted offender. Do you agree? Discuss in the light of the various aims of the court in a criminal matter.

(b) With the aid of appropriate statutes and decided cases, discuss the role of the Police and other law-enforcement agents in the administration of criminal justice in Nigeria.

6. The rationale for the defence of insanity is to protect those laboring under defects of reasoning, due to disease of the mind from being unjustly punished. In line with this statement, discuss the scope of insanity under the Criminal Law.

UNIVERSITY OF PORT-HARCOURT
FACULTY OF LAW
FIRST SEMESTER EXAMINATIONS 2019/2020 SESSION

CIL 303 – COMMERCIAL LAW 1

Instructions: Answer any FOUR Questions

Time Allowed: 3 Hours

Question 1

Odogwu Ekarika is the Managing Director of Buxom Enterprises Ltd, a company that deals in spare parts for various brands of Japanese vehicles. Likewise, he is into transportation and owns a fleet of passenger vehicles and some light heavy trucks. Recently, he was told about online trading and is desirous of getting involved in it as a means of expanding his customers' reach in the motor spare parts business. However, to maximize his profits, he intends to use his fleet of vehicles that ply major cities in Nigeria. He has approached you to seek clarification with regard to certain issues relating to delivery of goods under the laws governing the sale of goods. Advise him as to the following:

- (a) What constitutes delivery in sale of goods? (4 marks)
- (b) Whether time is of essence with respect to the delivery of goods? (5 marks)
- (c) The legal implications in instances whereby the seller delivers to the buyer a quantity less or more than he contracted to sell. (3 marks)
- (d) Who is liable for the loss in an instance where there has been delivery at the buyer's premises, but the good were delivered to someone who appears to have authority to receive and they were lost?. (3 marks)
- (e) If the buyer fails to take delivery in time, whether that would justify the seller in selling the goods to another person? (2.5 marks).

Question 2

- (a) Under common law, the general principle of contract was that of *caveat emptor* meaning 'buyer beware'. The seller was not deemed to be giving any undertaking as to title unless there is an express undertaking to that effect. However, this has been modified by the Sale of Goods Act. Discuss (12.5 marks)
- (b) Discuss the remedy of specific performance as it concerns an aggrieved buyer of goods. (5 marks)

Question 3

Tamuri Oghene is desirous of starting a business that would engage in the manufacturing of plastics and allied products. To source the required machineries, he was directed to Polymer Trading Ltd, a company dealing in machineries for the making of plastic and allied products. On getting to the company, he informed the sales manager of his need to have a moulding machine that would be capable of producing 1000 plastic buckets and other plastic products daily. For that purpose, the manager recommended a plastic moulding machine manufactured by Bosch Germany. The parties agreed on the price and mode of delivery. After the installation at Oghene's premises, it was found that the machine packed up barely after moulding only 500 plastic buckets. On further investigation, it was found that the machine had a latent fault which wasn't apparent to the seller (Polymer Trading Ltd) and Oghene on the examination of the machine. On realizing this, Polymer Trading Ltd has offered to repair the moulding machine. However Oghene is unhappy and wants to return the machine as unfit for purpose. Advise Oghene on the duty breached and remedies available to him under the Sale of Goods Act.

Question 4

Chidi Onyimax is a dealer in various oil servicing equipments and is based in Lagos. On 1 January 2021, he entered into a contract with Bono Oil Services Ltd, an oil servicing company based in Port Harcourt, for the sale of 20 unit of Fungchong Heavy duty water pumping machines. The parties agreed that the delivery will be done at the latter's premises which is No 10 old Aba-PH road, Port Harcourt. It was also agreed between the parties that payment would be effected on 15 January 2021. However, on 8 January 2021, while packaging the goods for shipment to Port Harcourt, Chidi Onyimax heard on the news that Bono Oil Services Ltd have run into some financial difficulties and has been declared insolvent by the court. Due to that, he decided to withhold delivery while Bono Oil Services Ltd is insisting on the contract as the equipment is very important in a job that would bail the company out of its present financial difficulties.

- (a) (i) Advise Chidi Onyimax on the legality or otherwise of his action. ✓
(ii) Would your answer be different if due to the importance of the equipment to the discharge of its activities, Bono Oil Services Ltd gives alternative security for the debt.
- (b) (i) Assuming that prior to hearing the news of the insolvency of Bono Oil Services Ltd, Chidi Onyimax had already given the goods to Izuchukwu Transport Ltd for onward delivery to the latter's premises in Port Harcourt, and the truck carrying the goods have left Izuchukwu Transport Ltd and had not gotten to Port Harcourt yet. What advise would you give to Chidi Onyimax as to his remedy as an unpaid seller in this instance?

- (ii) Would your answer be different if upon knowing of their financial situation and fearing that the goods might not get to them, the officials of Bono Oil Services Ltd decided to intercept the truck at Benin and took delivery of the goods?

Question 5

Madam kofo (MK to her friends) is a woman about town. She is the "Woman leader" of the No Nonsense Progressive Liberation Party, a progressive association in Koforiji Autonomous County. She has been mandated to host the party's celebration of her successful campaign on anti-feminism endeavours of the Koforiji Autonomous County Council. She intends that their successful campaign be celebrated in a manner that the Koforiji Autonomous County wouldn't forget in a hurry. She has commissioned several monogrammed Asoebi (uniform) materials for the exclusive use of the members and invitees of the planned celebration. She has just finalised the agreement for the fabrics with the Party's textile manufacturer of choice, Exclusive Trends (to the annoyance of Slay Queen [SQ], MK's adversary and the Party's former Woman leader). Citing a previous arrangement the Party had with Exclusive Trends, SQ intends to change the colours and designs that MK choose for the celebrations and to insist that they be delivered to her. The previous arrangement in question, purportedly allowed third party involvement in the previous contract.

Slay Queen would like to know what legal principles, if any, may help her achieve her purposes. Enumerate and discuss them.

Question 6 ✓

Waski recently took a lease of a shop at Rumuola. He intends to market exquisite designer cookery, and wants to go about his business in a well structured style. His next door neighbour, Jackie, keeps shouting "beware" to any buyer that comes into her shop. 'Buyer beware'? Waski is confused. As Waski's legal adviser, advise him on the following:

- (a) What legal explanation(s) lies for Jackie's "warning" to her customers. If there is, explain five (5) exceptions to it. (8.5 marks)
- (b) Explain any three (3) rules contained in s. 18 of the Law governing sale of goods in Rivers State.

FACULTY OF LAW
LL.B YEAR THREE 1ST SEMESTER EXAMINATION- 2019/2020 SESSION
COURSE: BANKING & INSURANCE LAW 1 (PPL. 305)

DATE: Thursday, 18th March, 2021

DURATION: 3 Hours

INSTRUCTIONS:

1. Answer four questions only out of the six questions
2. There are three sections-A, B & C
3. Answer four questions with at least one from each section
4. Indicate the question and the section in your answer script
5. Write your name and Matric No. in bold letters

SECTION A

Question 1 ✓

Nana is a young Man, a trader who needs to do businesses and with high hopes of becoming a law student one day, Nana understands that, he needs to start keeping some Money down to pursue his dream of becoming a Law student and graduating as such. Nana has for the above obvious reasons started operating an account with **Plan-Well plc**; a bank with an operating Branch office at Choba. Nana has over times becomes very known to the Bank staff, goes in and out of the said bank to carry out transactions including but not limited to cashing cheques, issuing cheques presenting Cheques etc...

Recently, hell broke loose and the Bank staff honoured several cheques which were later found to be bearing forged signatures of the Customers of the Bank.

- (a). Nana has approached you to advise him on his legal position as unauthorized payments are debited to his account resulting from forged signature. [7.5 Marks]
- (b). How will you describe Nana's Relationship with the **Plan-Well plc** (Bank), if Nana was over times, just known to the Bank staff, goes in and out of the said bank to carry out transactions including but not limited to cashing cheques and presentation of Cheques without operating any account with the Bank. [7.5 Marks]

- Discuss the above with the aid of judicial authority (ies).

Question 2

The over-riding legal relationship of a banker and its customer is contractual and fundamental with superadded obligations arising out of the custom of bankers.

Briefly discuss the Contractual relation between the Banker and the Customer with the aid of Authority (ies) if any. [17.5 Marks]

SECTION B

Question 3

Mazi Edozle was contracted by Mama Africa Limited to supply 1,000 bags of Ofada rice at the rate of N10million. Mazi Edozle supplied the rice and was issued a bill with the following inscription: "To Zenith Bank Plc, Ten days after the marriage of Mazi Edozle to Mary Bliss, I should be very happy if you will graciously agree to pay to Mazi Edozle or order the sum of Ten Million Naira for value received". Meanwhile, Ibe, Emenike and Gbenga are businessmen who import of all kinds of TECNO phones and accessories. Kendak Technologies Limited supplied the three businessmen one container load of TECNO CAMON 16 phone to the tune of N100 million. Ibe, Emenike and Gbenga who had no cash issued a note to Kendak Technologies Limited with the following inscription: "We jointly promise to pay Kendak Technologies Limited the sum of One Hundred Million Naira on the 30th of April 2020". When the three businessmen could not pay their debt, Kendak Technologies Limited sued Emenike to recover the entire sum. Judgment has been obtained in the suit and executed against Emenike but Kendak could only realise the sum of N20 million. Kendak has now sued Ibe and Gbenga for the balance of N80 million.

- With the aid of relevant authorities (if any) comment on the validity or otherwise of the bill issued to Mazi Edozle. [10 marks]
- Can Kendak successfully sue and recover the outstanding balance on the note from Ibe and Gbenga? Please cite relevant authorities, if any. [3½ marks]
- Would your answer have been different if the note issued to Kendak Technologies Limited had indicated that: "We jointly and severally promise to pay Kendak Technologies Limited the sum of One Hundred Million Naira on the 30th of April 2020"? [4 marks]

Question 4

Muiz Bank Plc and Global Bank Plc are two successful banks that have operated in the Nigerian banking industry for decades. They have decided to take advantage of the opportunities offered by the influx of investors into the country by building a strong bank that can compete globally and give investors value for their money. During the last financial year, the annual turnover of Muiz Bank Plc was N750 million while the annual turnover of Global Bank Plc within the same period was N450 million. Both banks have decided to merge and in the scheme of merger agreed by the parties, Muiz bank Plc will acquire Global Bank Plc. With the aid of relevant statutory authorities, advise the parties as to the following:

- The type of merger they should undertake. [2 marks]
- The procedures to be followed in achieving the merger you have recommended in (a) above. [12 marks]
- The role of the Governor of Central Bank of Nigeria in achieving the merger. [3½ marks]

SECTION C

Question 5

Mr. Dantata Mallam is a prominent businessman based in Kosoko and is desirous of expanding his business but for his limited cash. In order to raise the required fund for the expansion, he approached First Bank of Nigeria Plc for a loan of Five Million (N5, 000, 000) Naira only which the bank agreed to advance him. In conclusion, he used his property situate at 4 Uniport Road, Port Harcourt as security; the loan to be repayed within a period of two years and a deed of mortgage was entered between the parties to authenticate the transaction. A clause was inserted in the agreement to the effect that the property will pass to the Bank upon failure of Mr. Dantata Mallam to repay the debt within the agreed period and his right of redemption extinguished. Two months after the due date, Mr. Dantata Mallam, approached the Bank to redeem the property but the Bank refused, claiming the ownership of the property pursuant to the clause inserted in the agreement. On his part, Mr. Dantata Mallam threatened the validity of the transaction and alleged that the consent of the Governor was not obtained as required by law.

In view of the above scenario and with the aid of decided cases comment on the:

- (a) Validity of the Clause passing ownership of the property to the Bank after the expiration of the due date. (5 Marks).
- (b) The position taken by the Bank refusing Mr. Dantata Mallam from redeeming the property after the due date. (7.5 Marks)
- (c) The claim of Mr. Dantata Mallam that the transaction was invalid for failure to obtain Governor's consent. (5 Marks)

Question 6

The Central Bank of Nigeria is the head of the Nigeria Banking System and carries out its day to day activities through the Board of Directors otherwise known as the Board. With the aid of statutory provision (s), discuss:

- (a) The constitution of the Board of Directors. (7.5 Marks)
- (b) The tenure of office of the members of the Board of Directors. (7.5 Marks)